



INDIAN LAW & DEALMAKING · 4 AUGUST 2026

Five moves shaping the board now.

- › SC probes ED freeze of TMC's ₹440 crore
- › NCLAT stays NCLT on ARCIL's ₹3,482 cr claim
- › Mahapatra takes charge as SEBI Executive Director
- › Bombay HC backs NY judgment enforcement vs Rolta founder
- › SAT mandates e-filing for all fresh appeals

SWIPE →



PMLA · SUPREME COURT

01 / 05

SC questions ED on TMC account freeze

On August 3, 2026, a Supreme Court bench of Justices MM Sundresh and PB Varale heard TMC's plea challenging ED's freeze of three HDFC accounts holding about ₹440.42 crore. The court explored whether limited funds could be released via a court-appointed administrator for day-to-day operations.

THE READ

Verdict-first: expect calibrated relief, not full unfreeze. The strategic play is to press for an administrator-led release mechanism that preserves ED's investigative leverage while averting operational paralysis.



IBC · NCLAT

02 / 05

NCLAT stays NCLT on ARCIL's ₹3,482 cr claim

In an order reported on August 3, 2026, NCLAT stayed NCLT Chandigarh's rejection of ARCIL's ₹3,482 crore financial claim against JCT Ltd, holding limitation raises mixed questions of law and fact. The stay keeps the issue alive before the CoC votes on any resolution plan.

THE READ

Verdict-first: limitation is now a live gatekeeper issue. Bidders and lenders must price in the risk that admission of this claim could alter recoveries and plan math.



Mahapatra appointed SEBI Executive Director

On August 3, 2026, Prasanta Mahapatra assumed charge as SEBI Executive Director in Mumbai, overseeing the Corporation Finance Investigation Department and the Recovery and Refund Department. The appointment signals continued focus on corporate finance probes and investor refunds.

THE READ

Verdict-first: expect sharper scrutiny on disclosure and recovery pipelines. For issuers and intermediaries, tighten compliance on continuing obligations and refund workflows to avoid escalation.



CROSS-BORDER · BOMBAY HC

04 / 05

Bombay HC upholds asset disclosure for Rolta founder

In a judgment dated July 30, 2026 and reported on August 2–3, 2026, a Bombay High Court Division Bench dismissed Kamal K. Singh's appeal, upholding asset disclosure and restraint orders to enforce New York judgments totaling about ₹2,300 crore in favor of Pinpoint Multi Strategy Master Fund and others.

THE READ

Verdict-first: foreign-judgment enforcement will ride on CPC Section 14 presumptions. For promoters and family offices, global asset mapping and early settlement calculus are now critical.



ARBITRATION · SAT

05 / 05

SAT e-filing portal goes live from August 3

Effective August 3, 2026, SAT's e-filing portal became mandatory for all fresh appeals and judicial documents, with registration, approval, and prescribed PDF limits. The shift standardizes filings and compresses timelines for securities litigation.

THE READ

Verdict-first: procedural default risk rises immediately. Teams must pre-register, template filings, and route all SEBI appeals and interim applications through the portal to avoid rejection.



THE THROUGH-LINE

The common thread is enforcement discipline across forums. From PMLA account freezes to IBC limitation gates, from securities appointments to foreign-judgment enforcement and tribunal digitization, the state and regulators are tightening the screws on process, disclosure, and recoveries. The winning posture is proactive compliance, early settlement where exposure is clear, and flawless procedural execution.





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